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Case Number: 25SMCV06496 Hearing Date: September 22, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

MARTIN KEMPE,

Plaintiff,

v.

LEON GURVIN, et al.,

Defendants.

Case No.: 25SMCV06496

Hearing Date: September 22, 2026

[TENTATIVE] order RE:

DEFENDANT MICHAEL BOCK'S

SPECIAL MOTION TO STRIKE AND

DEMURRER WITH MOTION TO STRIKE

BACKGROUND

This is a breach of contract and fraud case. Plaintiff Martin Kempe alleges that he entered into a written contract with Defendant Leon Gurvin whereby Plaintiff would pay a \$6,500 fee and retainer for Gurvin's attorney, Defendant Michael Bock, in exchange for Gurvin paying Plaintiff half of his recovery in the underlying litigation. When Gurvin settled his case, Plaintiff claims he refused to give him half the recovery (or \$37,500).

The parties then entered into another contract where Gurvin agreed to pay Kempe \$27,000 to settle their dispute. Bock stated in writing that, "My client has authorized a resolution at 27,000" to settle the dispute. However, days later, Bock wrote to Plaintiff: "My client (LEON GURVIN) did not find the terms of your client's (MARTIN KEMPE's) proposed settlement agreement acceptable."

Plaintiff claims Bock made three misrepresentations of fact: (1) that Gurvin had agreed to settle; (2) that the settlement terms were not acceptable, and (3) that there was a condition to the parties' agreement involving a Jewish funeral service and burial for Gurvin. The last misstatement was allegedly made to the Court, in Bock's demurrer. Plaintiff claims that Bock made the first two misstatements to help Gurvin flee from the jurisdiction and avoid service of process.

The operative (second amended) complaint alleges four claims: two breach of contract claims against Gurvin, and fraud and declaratory relief claims against both Gurvin and Bock. The declaratory relief claim asks the Court to declare that Plaintiff has a corresponding lien against Bock's IOLTA Account's Attorney Client Trust Funds in the amount of \$75,000.00 which Bock is allegedly holding in the name of Gurvin.

This hearing is on Bock's special motion to strike and demurrer with motion to strike. As to the special motion to strike, Bock argues that his settlement communications and arguments in a demurrer are protected activity, and that any claims based on these activities are barred by the litigation privilege. Bock also filed a demurrer and motion to strike.

LEGAL STANDARD

"Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has 'at least 'minimal merit.' If the plaintiff cannot make this showing, the court will strike the claim." (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.)

DISCUSSION

First Prong

On the first prong, "courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Bonni, 11 Cal.5th at 1009.) "A defendant need only make a prima facie showing at this stage." (Ojeh v. Brown (2019) 43 Cal.App.5th 1027, 1035–1036.)

Bock argues that the litigation-related activities in the SAC are protected activities under the anti-SLAPP statute. The Court agrees.

In determining what constitutes protected petitioning activity, "we must give adequate 'breathing space' to the right of petition." (Sosa v. DIRECTV, Inc. (9th Cir. 2006) 437 F.3d 923, 932, quoting BE&K Constr. Co. v. NLRB (2002) 536 U.S. 516,

531 [153 L. Ed. 2d 499, 122 S. Ct. 2390].) “The right to petition means more than simply the right to communicate directly with the government. It necessarily includes those activities reasonably and normally attendant to effective petitioning.” (In re IBP Confidential Business Documents Litigation (8th Cir. 1985) 755 F.2d 1300, 1310.)

Recognized petitioning activities thus include not only the conduct of litigation but also acts and communications reasonably incident to litigation, including prelitigation settlement negotiations. (Takhar v. People ex rel. Feather River Air Quality Management Dist. (2018) 27 Cal.App.5th 15, 28–29; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 353.)

Further, a defendant’s conduct may be protected petitioning activity even if the statement was not made on the defendant’s own behalf. (Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1116.) A statement may be entitled to protection if made on behalf of the defendant’s client. (Id.) Therefore, Bock’s statements to Plaintiff during the parties’ settlement negotiations are protected activity.

That Plaintiff alleges Bock made false statements in the settlement negotiations “does not remove them from the definition of protected activity.” (Bonni, 11 Cal.5th at 1025.) “The protection of the anti-SLAPP statute applies ‘even against allegations of fraudulent promises made during the settlement process’” (Optional Capital, 18 Cal.App.5th at 114 (citations omitted).)

As to Bock’s arguments in his demurrer papers, those are also protected activity. Among other types of communications, the anti-SLAPP statute protects “any written or oral statement or writing made before a legislative, executive, or judicial proceeding” (Code Civ. Proc., § 425.16, subd. (e)(1)) or “in connection with an issue under consideration or review” in such proceedings (id., subd. (e)(2)).

In sum, Bock has met the first prong. His statements to Plaintiff made on behalf of his client during the parties’ settlement negotiations as well as arguments Bock made in filings before this Court are protected activities.

Second Prong

Once a defendant demonstrates that protected conduct is at issue, the plaintiff must show that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. (See Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.)

“Precisely because the statute (1) permits early intervention in lawsuits alleging unmeritorious causes of action that implicate free speech concerns, and (2) limits opportunity to conduct discovery, the plaintiff’s burden of establishing a probability of prevailing is not high: We do not weigh credibility, nor do we evaluate the weight of the evidence. Instead, we accept as true all evidence favorable to the plaintiff and assess the defendant’s evidence only to determine if it defeats the plaintiff’s submission as a matter of law. Only a cause of action that lacks ‘even minimal merit’ constitutes SLAPP.” (Overstock.com, Inc. v. Gradient Analytics, Inc. (2007) 151 Cal.App.4th 688, 699.)

The SLAPP statute’s second element--a “probability of prevailing”--means a “reasonable probability of prevailing, not prevailing by a preponderance of the evidence. For this reason, a court must apply a ‘summary-judgment-like’ test, accepting as true the evidence favorable to the plaintiff and evaluating the defendant’s evidence only to determine whether the defendant has defeated the plaintiff’s evidence as a matter of law.” (Gerbosi v. Gaims, Weil, West & Epstein, LLP (2011) 193 Cal.App.4th 435, 444.)

Bock argues that the alleged misstatements that form the basis for Plaintiff’s fraud and declaratory relief claims against him are barred by the litigation privilege. The Court agrees.

Section 47, subdivision (b), “establishes a privilege that bars liability in tort for the making of certain statements.” (Hagberg v. California Federal Bank (2004) 32 Cal.4th 350, 360.) Subdivision (b)(3) and (b)(4) confer immunity from civil liability for

statements made in any “official proceeding authorized by law” and “the initiation or course of any other proceeding authorized by law...”. It is an “absolute privilege” and bars all tort causes of action except a claim for malicious prosecution. (Whelan v. Wolford (1958) 164 Cal.App.2d 689, 694.)

The litigation privilege “serves broad goals of guaranteeing access to the judicial process, promoting the zealous representation by counsel of their clients, and reinforcing the traditional function of the trial as the engine for the determination of truth. Applying the litigation privilege to some forms of unlawful litigation-related activity may advance those broad goals notwithstanding the occasional unfair result in an individual case.” (Flatley v. Mauro (2006) 39 Cal.4th 299, 324.)

“To achieve this purpose of curtailing derivative lawsuits, the courts have interpreted the litigation privilege broadly.” (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1485.) Any doubt about whether the privilege applies is resolved in favor of applying it. (Optional Capital, Inc. v. Akin Gump, Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 116.)

Even fraudulent, perjurious and malicious statements are absolutely privileged so long as they are (1) required or permitted by law, (2) made in a judicial or quasi-judicial proceeding, (3) by litigants or other participants authorized by law, (4) to achieve the objects of the litigation, and (5) have some connection or logical relation to the action. (Silberg v. Anderson, supra, 50 Cal.3d at 212; Action Apt. Ass’n, Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.)

Bock’s alleged misrepresentations meet all of these elements. First, settlement discussions and demurrers are clearly permitted by law. Second, the alleged misstatements were made in a judicial proceeding or in connection with a judicial proceeding. Notwithstanding the statutory language “in” a judicial proceeding, Civil Code § 47(b) also protects certain prelawsuit communications such as settlement negotiations. (Edwards v. Centex Real Estate Corp. (1997) 53 Cal.App.4th 15, 34-36; see Hagberg v. California Fed’l Bank FSB (2004) 32 Cal.4th 350, 360-362.)

Third, the statements achieve the objects of the litigation – settlement and/or dismissal are clearly an object of litigation. Fourth and last, the statements have some logical relationship to the parties’ dispute. The settlement communications were designed to resolve the conflict between Gurvin and Plaintiff, and the demurrer was designed to terminate Plaintiff’s action against Bock.

In sum, both prongs of the anti-SLAPP statute have been met, and the Court will grant the special motion to strike. As the special motion to strike entirely resolves Plaintiff’s claims against Bock, Bock’s demurrer and motion to strike are now moot.

CONCLUSION

For the foregoing reasons, the Court GRANTS Bock’s special motion to strike the fraud and declaratory relief claims against him. The Court also OVERRULES Bock’s demurrer and DENIES the motion to strike as moot.

DATED: September 22, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court